

HOUSE No. 1742

The Commonwealth of Massachusetts

PRESENTED BY:

Christopher Hendricks

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to clarify the charitable purposes of certain organizations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>1/15/2025</i>

HOUSE No. 1742

By Representative Hendricks of New Bedford, a petition (accompanied by bill, House, No. 1742) of Christopher Hendricks for legislation to clarify the charitable purposes of certain organizations. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1544 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to clarify the charitable purposes of certain organizations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 85K of Chapter 231 of the General Laws is hereby amended by striking out the
2 first sentence of the first paragraph and inserting in place thereof the following sentence:

3 It shall not constitute a defense to any cause of action based on tort brought against a
4 corporation, trustees of a trust, or members of an association that said corporation, trust or
5 association is or at the time the cause of action arose was a charity; provided, that if the tort was
6 committed in the course of any activity carried on to accomplish directly the charitable purposes
7 of such corporation, trust or association, and such corporation, trust or association derives more
8 than fifty percent of its income from charitable gifts or donations, then liability in any such cause
9 of action shall not exceed the sum of twenty thousand dollars, exclusive of interest and costs.